

		<i>Inc.</i> (2006) 144 Cal.App.4th 824, 832–33, citing <i>Walsh v. Ford Motor Co.</i> (D.C.Cir.1986) 807 F.2d 1000, 1012.) Claims under the MMWA “stand or fall” with express and implied warranty claims under state law. (<i>Clemens v. DaimlerChrysler Corp.</i> (9th Cir. 2008) 534 F.3d 1017, 1022 [the plaintiff’s lack of privity under California law doomed his MMWA warranty claims]; <i>Daugherty v. American Honda Motor Co., Inc.</i> (2006) 144 Cal.App.4th 824, 832-833 [sustaining demurrer to MMWA cause of action because plaintiffs failed to plead a state-law warranty violation]; <i>West v. Rheem Manufacturing Company</i> (C.D. Cal. 2025) 765 F.Supp.3d 976, 990 [finding dismissal of MMWA cause of action warranted due to dismissal of state-law express and implied warranty claims].) Plaintiffs argue they can seek SBA remedies through the MMWA because the SBA remedies are severable from the SBA’s substantive rights. However, Plaintiffs’ cited authorities are distinguishable and unpersuasive for the reasons stated in GM’s reply. Plaintiffs contend these causes of action are based on the California Uniform Commercial Code (“UCC”). However, the FAC does not allege any UCC causes of action. “[T]he pleadings set the boundaries of the issues to be resolved at summary judgment. A plaintiff cannot bring up new, unpleaded issues in his or her opposing papers. (<i>Oakland Raiders v. National Football League</i> (2005) 131 Cal.App.4th 621, 648.) “It would be patently unfair to allow plaintiffs to defeat the summary judgment motion by allowing them to present a moving target unbounded by the pleadings.” (<i>Champlin/GEI Wind Holdings, LLC v. Avery</i> (2023) 92 Cal.App.5th 218, 224. The Court notes it granted Plaintiffs’ motion for leave to amend on 1/26/26, which only sought to add the two MMWA causes of action. (ROA 75.) Plaintiffs did not seek leave to add UCC causes of action. Therefore, because Plaintiffs’ SBA causes of action fail, their MMWA causes of action fail for the same reasons. The motion for summary judgment is GRANTED.
4	Plummer v. Norred 2025-01502837 Demurrer to 1st Amended Complaint	The general demurrer of defendant Mark W. Norred, CPA, to both causes of action in the first amended complaint of plaintiffs Law Offices of Mark B. Plummer, Mark Plummer, and Jocelyn Plummer is OVERRULED.

		Plaintiffs contend the allegations in the FAC concern defendant's representation of them in the audit of their 2018 and 2019 tax returns. They contend that, on December 30, 2024, defendant told them that he could no longer represent them in that audit and they needed to retain the services of a tax attorney. They contend that defendant thereafter refused to provide them with copies of documents from the audits and when they were able to obtain some of the documents through a third party, they learned that defendant failed to provide the IRS with documents that it repeatedly asked him for. Plaintiffs contend that defendant hid this failure from them and that they would have provided the documents had they been aware of the IRS requests. Plaintiffs contend that the limitations period started running on December 30, 2024, i.e., the date when defendant told them that he could no longer represent them in the audits. Based on these allegations in the FAC, the Court cannot determine, as a matter of law, when plaintiffs' causes of action accrued and the limitations period began to run. Thus, the Court cannot determine, as a matter of law, that the action, which was filed on August 11, 2025, is time-barred under either a two-year or three-year limitations period. Defendant is to file an answer to the FAC within 20 days.
5	Morley v. Mike Moshayedi Trustee of M & P Moshayedi Revocable Trust 2024-01450562 Motion for Summary Judgment and//or Adjudication	Defendants Mike Moshayedi and Parto Moshayedi (aka Parto Ghadimi), as trustees of the M. and P. Moshayedi Revocable Trust's Motion for Summary Judgment, or in the Alternative, Summary Adjudication is GRANTED in part and DENIED in part. Objections to evidence The Court OVERRULES Plaintiff's objections to evidence numbers 1, 4, 5, 8, 9, 11, and 12. The Court OVERRULES Defendants' objections to evidence numbers 1, 6, 10. The Court declines to rule on the remaining objections as immaterial to the disposition of the motion. (Code Civ. Proc., § 437c(q).) First cause of action for breach of Lease A claim for breach of contract requires a showing of "(1) the existence of the contract, (2) plaintiff's performance or excuse for nonperformance, (3) defendant's breach, and (4)